Service Level Agreement (SLA) and Terms of Use — PivetTrack

Provider: PIVET DIGITAL AUTOMATIONS LLC
Product: PivetTrack (Software as a Service — Inventory Management System / WMS)
Reference jurisdiction: State of Florida, United States of America
Document version: 1.13 (draft) — November 4, 2026: aligned with the Terms of Service and with SOW v1.9. Adds the copy of the database on exit (Section 6.2) and clarifies deletion after termination (6.3), venue (10), acceptance (12) and the wording of 5.3(b) and 9.2(c) for a dedicated instance. **Pending legal review.** No changes to availability, credits, support timelines or Uptime calculation exclusions.

> **English translation.** This is a translation of the Spanish SLA v1.13, provided for convenience. It has not been reviewed by an attorney. If the two versions conflict, the Spanish text prevails.

> **Preliminary note on this document.** This document is a **contract template (draft)**, available for review by the Client and its advisors. It does not bind the Parties until it is executed. Florida and federal law apply to it, among others, including the *Florida Deceptive and Unfair Trade Practices Act* and the Florida *Uniform Commercial Code*. PIVET DIGITAL AUTOMATIONS LLC reserves the right to modify this document before it is formally executed.

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1. Definitions and Purpose

1.1. Parties

"the Provider", **"Pivet"** or **"we"** means **PIVET DIGITAL AUTOMATIONS LLC**, a *Limited Liability Company* duly organized and existing under the laws of the State of Florida, in its capacity as **exclusive provider, developer and operator** of the Software defined in Section 1.2.

"the Client" means the corporate legal entity (B2B) that subscribes to, contracts for or otherwise accesses the Software through an authorized account, together with its personnel, employees, contractors and authorized users who operate that account.

1.2. The Software — "PivetTrack"

"PivetTrack" or **"the Software"** means the *Software as a Service* (**SaaS**) platform owned exclusively by the Provider, designed for inventory and warehouse management (*Warehouse Management System* — **WMS**), which includes, without limitation, the following functional modules: Supplier Receipts (including two-step receiving and its discrepancies), Shipments to Clients, Client Returns, Returns to Suppliers, Write-offs, Transfers between Warehouses, Inventory Count, Locations within the warehouse, Lots and expiration dates (with FEFO shipping and lot traceability), Kardex (movement ledger), Weighted Average Cost (WAC) calculation, Reports, and the configuration modules (Warehouses, Suppliers, Clients, Product Catalog and its presentations or units of measure).

The Software is provided exclusively as SaaS, hosted on cloud infrastructure managed by the Provider or its *cloud infrastructure providers*, without the Client acquiring a source code license, local copy or right to install it on its own infrastructure, unless expressly agreed otherwise.

The **Inventory Count** module supports two physical audit modes, selectable by the Client when starting each count: the **Partial** mode (cycle audit of a subset of products) and the **General or "Wall-to-Wall"** mode, in which the Software incorporates an **auto-reconciliation** engine that, when the count moves to its review phase —and, in any event, when it is Confirmed—, automatically identifies every product with stock recorded in the system that was not physically counted by the Client's personnel and adds it to the adjustment with a physical quantity of zero, with no further manual intervention. The liability treatment applicable to both modes is governed by Section 5.3(c) of this Agreement.

In addition, as part of the Initial Implementation services contracted under Section 2.2 of the Statement of Work and Commercial Proposal (SOW), the Software supports **custom branding** of the Client's interface and of the official documentation the Software issues (receipts in PDF format), by incorporating the Client's logo and visual identity. This customization is exclusively aesthetic and presentational: it does not modify, replace or have any effect on the business logic, calculations, validations or audit records of the Software described in this Agreement.

1.3. Purpose of the Agreement

The purpose of this Service Level Agreement ("**SLA**" or "**the Agreement**") is to establish:

(a) the Software's availability (*uptime*) commitment;
(b) the platform's maintenance and update policies;
(c) the technical support matrix and its guaranteed response times; and

(d) the Provider's exclusions and limitations of liability, particularly regarding the accuracy of the operating, accounting and inventory data resulting from the Client's use of the Software.

This Agreement is incorporated by reference into the **SOW (Statement of Work and Commercial Proposal)** executed by the Parties, which is the governing agreement for the commercial relationship between the Parties, and in the event of a conflict between the two documents on the matters regulated here, **the provisions of this SLA prevail**.

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2. Service Availability (Uptime)

2.1. Availability Commitment

The Provider undertakes to maintain Software availability equal to or greater than **99.9% per month** ("**Guaranteed Uptime**"), measured over the total minutes of the corresponding calendar month.

Measurement. Availability is measured by the external monitor the Provider maintains for each instance, which checks its health endpoint (`/healthz`) once per minute. A minute counts as unavailable when that check does not receive a successful response, unless the minute falls under one of the exclusions in Section 2.3.

The equivalent unavailability tolerated under this commitment is as follows:

Uptime level	Maximum unavailability allowed per month
99.9% (contractual commitment)	≈ 43 minutes and 12 seconds
99.5%	≈ 3 hours and 39 minutes
99.0%	≈ 7 hours and 18 minutes

2.2. Technical Basis of the Commitment

This availability commitment rests on the cloud architecture on which PivetTrack operates:

- **PostgreSQL database managed** by a cloud infrastructure provider, in an instance dedicated to the Client, with daily automated backups under Section 2.5. The standard deployment **does not include** a standby replica or automatic database failover: if the database fails, the Service is restored by recovering the instance or restoring from backup.
- **Containerized deployment** of the application layer, which allows application instances to be replaced, scaled and recovered without depending on a single server.
- Active monitoring of the availability of the platform and its critical components.

2.3. Exclusions from the Uptime Calculation

None of the following events counts as unavailability for purposes of calculating Guaranteed Uptime:

(a) **Scheduled Maintenance**, as provided in Section 3;
(b) **Emergency Maintenance** justified by security reasons, as provided in Section 3.3;
(c) Failures or interruptions originating in the **Client's own Internet connectivity, hardware, software or**

network configuration, beyond the Provider's control;
(d) Interruptions caused by the **Client's misuse of the Software**, including, without limitation, denial-of-service attacks originating from or facilitated by the Client's credentials, or third-party integrations not authorized by the Provider;
(e) **Force majeure** events, under Section 11.4;
(f) Interruptions resulting from the Client's express instructions (for example, a temporary account suspension requested by the Client);
(g) The running time of high-volume imports and Inventory Count confirmations that the Software processes in the background, under **Exhibit B** of the Statement of Work and Commercial Proposal (SOW), including their automatic resumption after an interruption, for as long as the Software remains accessible — those processes have no guaranteed duration (Exhibit B, Sections B.4 and B.6), and the warehouse freeze while a Count is confirmed is governed by Section 5.4;
(h) Latency degradation resulting from operating above the SaaS Base plan concurrency limits defined in **Exhibit C** of the SOW — more than **one hundred twenty (120) simultaneous users**, more than **two (2) concurrent heavy inventory report exports**, and/or **three (3) or more concurrent high-volume processes** —, as well as the higher transient latency while a high-volume process runs (Exhibit B, Section B.5) — that concurrency is expressly outside the guaranteed performance of the standard deployment (Exhibit C, Sections C.1 to C.3) and, when routine and sustained, requires the Enterprise Plan (Advanced Infrastructure Add-on, with dedicated job queues and processing servers), quoted separately. The size of the Client's catalog does not, by itself, give rise to this exclusion;
(i) The time taken by a **database restoration requested by the Client**, under Section 2.5(c).

2.4. Service Credits

If the Provider fails to meet the Guaranteed Uptime set out in Section 2.1 during a given calendar month, and provided the Client is current on its payment obligations, the Client may request, within thirty (30) days after the close of that month, a service credit applicable to its billing for the following month, according to the following scale:

Actual monthly Uptime	Service credit
Between 99.0% (inclusive) and 99.9% (exclusive)	5% of the monthly fee
Between 95.0% (inclusive) and 99.0% (exclusive)	10% of the monthly fee
Below 95.0%	25% of the monthly fee

Service credits are the Client's **sole and exclusive remedy** for a failure to meet the Guaranteed Uptime and may not be combined with other claims for the same facts, without prejudice to Section 5.

2.5. Backups and Data Recovery

(a) **Daily backup.** The Provider maintains an automated **daily** backup of the Client's database, retained for **seven (7) days**.

(b) **Recovery point.** If the Service must be recovered from a backup, movements recorded after the last available backup may be lost: **up to twenty-four (24) hours** of operation.

(c) **Restoration time.** While a database restoration is under way, the Software remains inaccessible. The Provider **does not guarantee a specific restoration time**, as it depends on the size of the Client's database. Restoration time counts as unavailability for purposes of Section 2.1, unless the restoration was requested by the Client or another of the exclusions in Section 2.3 applies.

(d) **Point-in-time recovery (optional).** *Point-in-Time Recovery* (PITR), which reduces the maximum data loss in paragraph (b) to minutes, **is not part of the standard deployment** and is quoted separately, through an additional commercial proposal at the Client's request.

(e) **Backups do not correct operating errors.** Backups exist to recover the Service from an infrastructure failure. They are not a mechanism for reversing operating errors by the Client's personnel, the correction of which is governed exclusively by Section 5.3.

2.6. Application Response Time

For up to **one hundred twenty (120) simultaneous users**, the Provider guarantees a response time of up to **0.5 seconds** in the picking flow, measured as the 95th percentile at the application server, under the terms and conditions of Sections C.1 and C.1.1 of **Exhibit C** of the SOW, and it does not apply outside them. This time is different from the support response time in Section 4. A failure to meet it is handled as a High Severity (Sev. 2) incident under Section 4.2, which is the Client's **sole and exclusive remedy** for this matter: it does not give rise to service credits and does not count as unavailability.

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3. Maintenance and Updates

3.1. Scheduled Maintenance

The Provider may perform scheduled maintenance on the infrastructure and the Software (including database updates, schema migrations and deployment of new versions) within the following **standard maintenance window**:

> **Sundays, from 2:00 a.m. to 6:00 a.m. (U.S. Eastern Time — ET)**

The Provider will notify the Client at least **forty-eight (48) hours** in advance of any scheduled maintenance that is expected to cause Software unavailability, through the contact email registered by the Client and/or a notice within the platform.

3.2. Update Policy

PivetTrack is updated continuously under a *continuous delivery* model typical of SaaS. Accordingly:

(a) All Client accounts always operate on the **same current version** of the Software — there are no parallel historical versions per client;
(b) Corrective updates (*patches* and bug fixes) may be deployed without prior notice when they do not involve behavior changes visible to the user or a risk of unavailability;
(c) Updates involving **substantial changes in functionality** will be communicated to the Client with reasonable advance notice through the Provider's official communication channels.

3.3. Emergency Maintenance

The Provider may perform maintenance outside the standard window, without meeting the 48-hour notice period, when strictly necessary to: (i) remedy an active security vulnerability; (ii) prevent imminent data loss or corruption; or (iii) restore the Service after a critical failure. In these cases, the Provider will notify the Client **as soon as possible**, including during or immediately after the intervention.

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4. Technical Support and Response Times

4.1. Support Channels and Hours

Standard technical support is provided during **business hours**: Monday to Friday, 9:00 a.m. to 6:00 p.m. (U.S. Eastern Time — ET), excluding United States federal holidays ("**Business Hours**"). **Critical Severity** incidents are handled on a **24 hours / 7 days a week** basis, according to the matrix below.

4.2. Severity Levels and Response Times Matrix

Severity	Definition	Typical example	Guaranteed initial response time	Resolution or mitigation target
Critical (Sev. 1)	The Software is completely inaccessible to all of the Client's users, or data loss is in progress.	Total Service outage; absolute inability to log in.	**1 hour**, 24/7	4 hours
High (Sev. 2)	An essential Software feature is degraded or inoperative, with no reasonable operating alternative (*workaround*).	Inability to **Confirm** documents (Receipts, Shipments, Transfers); systematic WAC calculation error.	**4 business hours**	1 business day
Medium (Sev. 3)	A functional error affects a subset of users or secondary features, with a reasonable operating alternative available.	Visual error in a report; isolated failure of the SKU search.	**1 business day**	3 to 5 business days
Low (Sev. 4)	General inquiries, improvement requests, questions about use or training.	Questions about using a module; request for a new feature.	**2 business days**	No commitment — prioritized according to the product *roadmap*.

4.3. Details on Response Times

(a) The **"response time"** is the maximum period within which the Provider will confirm receipt of the incident report and begin its diagnosis — it does not, by itself, constitute resolution of the incident.
(b) The **"resolution or mitigation target"** is a *best-effort* goal and not an absolute contractual guarantee,

since the resolution of certain incidents may depend on factors external to the Provider (for example, the availability of the cloud infrastructure provider).
(c) The severity classification of a reported incident will be determined, in the first instance, by the Provider's support team, applying the criteria of the matrix above in good faith.
(d) The Client must report incidents through the official support channels communicated by the Provider, providing the information reasonably necessary for their diagnosis.

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5. Exclusions and Limitation of Liability

This section governs the core of the liability relationship between the Parties and has been drafted in strict correspondence with the technical and architectural design of the Software. The Client acknowledges having read, understood and accepted each of the following clauses as an essential condition for the use of PivetTrack.

5.1. General Principle: Data Is the Client's Responsibility

PivetTrack is a tool for **processing and recording** the operating information that the Client and its authorized personnel enter into the system. The Provider **does not participate in, validate or have any technical means of verifying** the accuracy, truthfulness, completeness or commercial, accounting or tax relevance of that information at the time it is captured.

Consequently, and without prejudice to Section 5.5, **PIVET DIGITAL AUTOMATIONS LLC assumes no liability for accounting, tax or inventory discrepancies** resulting, directly or indirectly, from data entered, omitted or modified by the Client or its personnel.

5.2. Exclusion of Liability for the Weighted Average Cost (WAC) Calculation

(a) **Mathematical and deterministic nature of the calculation.** The Software calculates the Weighted Average Cost (WAC) of each product using a fixed, deterministic and auditable mathematical formula —the weighted average cost, automatically recalculated over all existing stock of the product across all of the Client's warehouses— whose only inputs are the **quantities and unit prices that the Client itself enters** in each Supplier Receipt, or that derive from the historical cost recorded in each Client Return. Outside this formula, the WAC changes only by express decision of the Client's authorized personnel, in the two cases in paragraph (c):

$$\text{new_WAC} = \frac{\text{current_stock} \times \text{current_WAC} + \text{incoming_quantity} \times \text{incoming_price}}{\text{current_stock} + \text{incoming_quantity}}$$

(b) **No discretion by the Provider.** The Provider does not intervene manually, weigh or exercise any judgment over this calculation: the result is a direct and exclusive mathematical consequence of the data captured by the Client. The Software **never modifies the WAC** on the occasion of a Shipment to a Client, a Return to Supplier, a Write-off or a Transfer between warehouses, precisely so as not to introduce distortions unrelated to the actual cost of acquiring or re-entering the merchandise.

(c) **Manual adjustments.** The Software allows, exclusively to Client users with the Administrator role (or higher), to set a product's WAC in two ways:

- (i) the **direct manual adjustment** of a product's WAC, which requires the mandatory capture of a justifying reason and is recorded in an **immutable audit log**, indelible and non-editable, that identifies the Client user who performed it, the date, the previous value and the new value; and
- (ii) entering a **new WAC for a line of an Inventory Count**, during its review, which becomes the product's WAC when the Count is Confirmed and is recorded in the confirmed Count document, together with the user who confirmed it.

Responsibility for the relevance, accuracy and timeliness of these manual adjustments rests **exclusively with the Client**, and the records mentioned are sufficient evidence of their authorship.

(d) Accordingly, the Provider **will not be liable** for any accounting, tax, financial or inventory valuation consequence deriving from: (i) purchase prices entered erroneously, incompletely or fraudulently by the Client; (ii) units of measure misconfigured in the Product Catalog; or (iii) manual WAC adjustments made by the Client's authorized personnel by either of the means in paragraph (c).

5.3. Exclusion of Liability for the Kardex (Immutable Audit Record)

(a) **Immutability by design.** The Kardex is the historical and immutable record of all of the Client's inventory movements. This immutability **is not a circumstantial limitation but an intentional architectural design feature**, implemented at the level of the Software's own database: once a movement is recorded in the Kardex —which occurs exclusively upon **Confirming** an operating document —, the Software **technically rejects, without any exception and regardless of the privilege level of the user attempting it**, any operation to modify or delete that record. The only technical operation capable of removing movements from the Kardex is the reset of the Provider's demonstration and test instances, which requires an express configuration that is not enabled on Clients' production instances.

(b) **Provider's commitment not to intervene directly.** The Provider **will not, under any circumstances, make direct manual alterations, deletions or corrections in the Client's production database** in order to "correct" human errors, duplicate entries, wrongly entered quantities, documents confirmed by mistake or any other operating error attributable to the Client's personnel — not even at the Client's express request. This policy protects the value of the Kardex as an audit record: allowing manual exceptions would compromise its reliability for the Client itself, its auditors and third parties.

(c) **Exclusive means of correction: the Software's functional modules.** Every correction of a human error by the Client's personnel must be channeled, without exception, through the functional mechanisms specifically designed for that purpose, and under the Client's exclusive responsibility for their timely, diligent and correct use:

- **Inventory Count:** to reconcile discrepancies between a warehouse's actual physical stock and the stock recorded in the system, through a formal physical count that generates the corresponding compensating adjustments. In its **General (Wall-to-Wall)** mode, this adjustment includes, through the auto-reconciliation engine described in Section 1.2, every product not physically counted by the Client's personnel, whose stock is automatically adjusted to zero — the Client being exclusively responsible for verifying, before Confirming the document, that the selected mode (Partial or General) actually corresponds to the physical scope of the count performed by its personnel.
- **Write-off:** to remove inventory that was incorrectly recorded as available and no longer is (loss, damage, expiration, counting error or other).

- **Client Return:** to bring back into inventory merchandise previously dispatched in an already Confirmed Shipment, when that operation should be reversed.

Each of these modules operates by generating **new compensating Kardex lines**, never altering or deleting existing lines — so that the complete history, including the original error and its later correction, is preserved in full and traceable form.

(d) Accordingly, the Provider **will not be liable** for any consequence arising from the Client's failure to use, late use or incorrect use of the Inventory Count, Write-off or Client Return modules to correct operating errors by its own personnel.

5.4. Exclusion of Liability for Warehouse Freeze

(a) The Software implements an automatic operating lock mechanism (the **"Warehouse Freeze"**), whereby, for as long as there is an open Inventory Count in "Draft" status for a given Warehouse, the system **technically prevents** the recording of new Receipts, Shipments, Write-offs, Transfers (whether as origin or destination), Client Returns and Returns to Suppliers involving that Warehouse, the approval, for dispatch from that Warehouse, of purchase orders received through the B2B order portal, and the relocation or recount of merchandise between its locations, both when creating a new document and when editing an existing one in Draft status.

(b) This restriction is a **measure to protect the integrity of the Client's own data**, designed to prevent a physical count in progress from falling out of sync with movements recorded at the same time. The Client acknowledges and accepts that this behavior is **intentional and expected**, and that the operating lock of a Warehouse while it is physically audited **does not constitute a Service interruption** for purposes of the Uptime calculation in Section 2.

(c) It is the Client's exclusive responsibility to **diligently manage** the timely opening, capture, review and confirmation (or deletion) of its Inventory Counts, so as not to cause unwanted interruptions in its own operation. The Provider will not be liable for operating or commercial losses of the Client resulting from keeping an Inventory Count open for a prolonged or negligent period.

5.5. General Limitation of Liability

(a) **Exclusion of implied warranties.** Except as expressly provided in this Agreement, the Software is provided **"AS IS" AND "AS AVAILABLE"**, without warranties of any kind, express or implied, including, without limitation, implied warranties of merchantability, fitness for a particular purpose or non-infringement, to the maximum extent permitted by the applicable law of the State of Florida.

(b) **Exclusion of indirect damages.** In no event will the Provider be liable to the Client for lost profits, lost revenue, lost business opportunities, or indirect, incidental, special, punitive or consequential damages of any nature, arising from the use of or inability to use the Software, even if the Provider was advised of the possibility of such damages.

(c) **Maximum liability cap.** The Provider's total aggregate liability to the Client, for any cause related to this Agreement or to the use of the Software, will in no event exceed the amount actually paid by the Client to the Provider **exclusively as recurring subscription (SaaS) fees** during the **twelve (12) months** immediately preceding the event giving rise to the claim.

Expressly excluded from the calculation of this liability cap are any amounts paid by the Client for items other than the recurring subscription, including, without limitation: (i) the initial *Setup Fee*; (ii) implementation services; (iii) data migration services; and (iv) *training* services for the Client's personnel. These items are one-time professional services, already earned and provided regardless of the continued availability of the Software, and therefore do not form part of the calculation base for this limitation.

(d) The limitations of this Section 5.5 will not apply to: (i) damages arising from the Provider's willful misconduct or gross negligence; (ii) breach of the confidentiality obligations in Section 7; or (iii) other cases that Florida law does not allow to be limited by contract.

5.6. Indemnification for Client Use

(a) **Obligation to defend and indemnify.** The Client agrees to **defend, indemnify and hold harmless** PIVET DIGITAL AUTOMATIONS LLC, its affiliates, directors, employees, contractors and representatives (collectively, the **"Indemnified Parties"**), against any lawsuit, government investigation, tax audit, administrative proceeding or third-party claim —including the payment of **reasonable attorneys' fees and court costs**— deriving from, relating to or arising as a consequence of:

(i) the **unlawful use of the Software** by the Client or its authorized personnel, including any use that contravenes applicable law or the SOW executed by the Parties;
(ii) the **upload, capture or recording of fraudulent data** in the Software for purposes of tax evasion, accounting manipulation, money laundering or any other unlawful purpose; and
(iii) the **Client's violation of third-party rights**, including intellectual property rights, privacy or personal data protection rights, or the Client's contractual obligations to its own suppliers, customers or employees.

(b) **Scope.** This indemnification obligation applies regardless of whether the triggering event was committed with intent, through negligence or through the legitimate use of the Client's access credentials, and will survive termination of this Agreement with respect to events occurring during its term.

(c) **Procedure.** The Provider will notify the Client without undue delay of any claim subject to this indemnification, and the Client will assume control of the corresponding defense with counsel of its choice reasonably acceptable to the Provider, without prejudice to the Provider's right to participate in that defense, at its own cost, through its own counsel. The Client may not settle or concede an indemnifiable claim in a way that imposes liability, obligation or admission of fault on the Provider, without the Provider's prior written consent.

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6. Data Ownership and Portability

6.1. Data Ownership

All operating data entered by the Client into the Software (including its Product Catalog, Kardex, operating documents and configurations) are and will remain the **exclusive property of the Client**. The Provider acts solely as technical custodian (*data processor*) of that information for purposes of providing the Service.

6.2. Export and Portability

The Software provides native mechanisms for exporting information in Excel format (**.xlsx**) —including, without limitation, the Current Stock, Kardex and near-expiry reports, the traceability of a lot and the Inventory Count receipt— which the Client may use at any time during the contractual relationship to obtain a copy of its data, under the Advanced Reporting Module described in SOW Section 2.2. The Provider may extend this native export to other operating documents according to the product *roadmap*, without this constituting a contractual obligation in addition to the one described here.

In addition, if the Client requests it in writing within the thirty (30) calendar day period of Section 6.3, the Provider will deliver, at no cost, a full copy of its database (a PostgreSQL dump), subject to the same payment condition of that Section.

6.3. Retention after Termination

Upon termination of the subscription contract for any reason, the Provider will keep the Client's data available for export for a period of **thirty (30) calendar days**, after which the Provider will permanently delete it, unless a legal retention obligation provides otherwise.

Payment condition (right of retention). The Client's right to export, recover or request a copy of its operating data (including, without limitation, the Kardex, Current Stock and any other report) during the thirty (30) calendar day period referred to in the preceding paragraph **is strictly conditioned on the Client being current on all of its payment obligations** to the Provider on the date of the request. If there are overdue unpaid invoices, the Provider expressly reserves the **right of retention** over access to the data export, and may suspend that access until the outstanding debt is settled in full, without this constituting a breach of this Agreement by the Provider.

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7. Security and Confidentiality

The Provider will implement reasonable technical and organizational measures, in line with industry standards, to protect the confidentiality, integrity and availability of the Client's data hosted in the Software, including access controls based on user roles (Operator, Administrator, Super Administrator) and encryption of communications between the Client and the platform. Each Party undertakes to keep in strict confidence the non-public information of the other Party to which it has access in connection with this Agreement, and not to disclose it to third parties without prior written authorization, except when required by a competent authority.

7.1. Client Responsibility for Custody of Credentials (Human Factor)

Without prejudice to the security measures implemented by the Provider at platform level, the Client acknowledges and accepts that the security of access to the Software ultimately depends on the correct management of credentials by its own personnel. Accordingly:

(a) The Client is **solely and absolutely responsible** for the custody, strength, confidentiality and individual, non-transferable use of the passwords and other access credentials assigned to each of its authorized users, and for establishing and enforcing its own internal information security policies for its personnel.

(b) **PIVET DIGITAL AUTOMATIONS LLC is expressly released from all liability** for data leaks, unauthorized access, damage, loss or alteration of the Kardex or any other Software record resulting, directly or indirectly, from: (i) the lending, assignment or shared use of credentials among the Client's users; (ii) the theft, loss or compromise of credentials through negligence attributable to the Client's personnel; or (iii) the creation or maintenance of weak or reused passwords or passwords that fail to meet the minimum security standards recommended by the Provider.

(c) Every action performed in the Software under a valid user credential will be presumed to have been performed by the authorized holder of that credential, including, without limitation, the creation, editing and Confirmation of operating documents and their resulting recording in the Kardex under Section 5.3 — the per-user traceability of which is precisely the technical mechanism by which the Client's internal responsibility to its own personnel is determined.

7.2. Security Breach Notification

In the unlikely event that PIVET DIGITAL AUTOMATIONS LLC **confirms** a *security breach* that compromises the Provider's own infrastructure and exposes Client data hosted in the Software, the Provider will notify the Client within **no more than seventy-two (72) hours** from confirmation of the incident, as provided by the *Florida Information Protection Act* (FIPA) and other applicable rules in the State of Florida on security breach notification.

That notification will include, to the extent the information is reasonably available when issued, a general description of the incident, the categories of data potentially affected, and the containment and remediation measures adopted or under way by the Provider. It is expressly clarified that this notification obligation is limited to security incidents originating in the infrastructure and systems under the Provider's direct control, without prejudice to Section 7.1 regarding incidents originating in the custody of credentials by the Client itself.

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8. Fees, Billing and Taxes

8.1. Net Fees

The Service fees are **net**. Although, as of the date of this Agreement, the provision of Software as a Service (SaaS) is not subject to the State of Florida *Sales Tax*, the Client will be **solely responsible** for determining, reporting and bearing any tax, levy, duty, contribution or withholding —present or future— that the state, federal or other applicable law may impose on the Software subscription or on the associated professional services (including, without limitation, implementation, data migration and training), with the sole exception of taxes directly on the Provider's *net income*.

8.2. Billing

The Provider will bill the Client according to the frequency and payment method agreed in the SOW executed by the Parties. The Client undertakes to keep its billing and administrative contact information up to date.

8.3. Late-Payment Interest

Any invoice not paid by its due date will accrue, automatically and with no prior demand required, **late-payment interest of one and a half percent (1.5%) per month** on the unpaid balance, or the **maximum permitted by applicable law**, whichever is lower. In addition, the Client will bear the **reasonable collection costs** incurred by the Provider to recover amounts owed, including reasonable attorneys' fees, without prejudice to the Provider's right to suspend the Service under Section 9.2.

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9. Term, Suspension and Termination

9.1. Term and Automatic Renewal

This Agreement takes effect on the date the Parties execute the SOW (Statement of Work and Commercial Proposal) and remains in force for as long as that SOW remains in force between the Parties.

The Service operates under a **monthly automatic renewal model**: at the end of each monthly period, the subscription automatically renews for an additional monthly period, with no action required from the Client, and the Client will be billed at the current rate. **Either Party may cancel the subscription** by notifying the other Party **in writing, at least thirty (30) calendar days** before the date on which the cancellation is intended to take effect, and the cancellation takes effect at the end of the current monthly period.

9.2. Service Suspension

The Provider may suspend the Client's access to the Software, with prior notice where reasonably possible, in the event of: (a) non-payment of fees owed for more than fifteen (15) days after their due date; (b) use of the Software in violation of applicable law or the SOW executed by the Parties; or (c) reasonable risk to the security or integrity of the Client's instance or of the Provider's infrastructure.

9.3. Effects of Termination

Termination of the Agreement does not release the Client from payment of obligations accrued and outstanding on the termination date, and, as regards the Client's data, is governed by Section 6.3.

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10. Governing Law and Jurisdiction

This Agreement is governed by and construed in accordance with the laws of the **State of Florida, United States of America**, excluding its conflict of laws rules. The Parties submit to the exclusive jurisdiction of the competent state or federal courts located in **Miami-Dade County, Florida** for the resolution of any dispute arising from this Agreement, expressly waiving any other venue to which they may be entitled; disputes are not subject to arbitration. **To the fullest extent permitted by law, each Party waives its right to a jury trial** in any dispute arising out of this Agreement.

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11. General Provisions

11.1. Amendments

The Provider may amend this Agreement by giving the Client prior notice, at least thirty (30) calendar days in advance of any change that substantially reduces the guaranteed service level.

11.2. Severability

If any provision of this Agreement is held invalid or unenforceable by a competent court, that provision will be interpreted and adjusted to the minimum extent necessary to make it valid and enforceable, and the rest of the Agreement will remain in full force and effect.

11.3. Entire Agreement

This Agreement, together with the SOW (Statement of Work and Commercial Proposal) executed by the Parties into which it is incorporated, constitutes the entire agreement between the Parties with respect to its subject matter, and supersedes any prior understanding or agreement, oral or written, on the same matter.

11.4. Force Majeure

Neither Party will be liable for failure to perform its obligations under this Agreement when that failure results from causes reasonably beyond its control, including, without limitation, natural disasters, regional power or Internet infrastructure outages, acts of government, or widespread failures of third-party cloud infrastructure providers.

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12. Acceptance

This Service Level Agreement is accepted by signing the SOW that incorporates it by reference (Sections 1.3 and 9.1). The block below serves as additional evidence of that acceptance.

Provider	PIVET DIGITAL AUTOMATIONS LLC
Product	PivetTrack
Client	_____
Client's authorized signature	_____
Date	_____